

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

NIGERIAN LEGAL SYSTEM

INTERNAL CONFLICT OF LAWS

Internal Conflict of Laws arises where the laws within a sovereign state are in conflict with one another. Where there is a clash between two laws in a country, there is what is generally or commonly known as Internal Conflict of Laws.

Reasons for Conflict of Laws in Nigeria

Among the reasons for Conflict Between Laws in Nigeria are:

1. Nigeria is a multi-ethnic, multi-lingual and multi-cultural nation, with each of these groups having customs which may be similar but are not exactly the same. Where people from different cultural or customary backgrounds are involved in a transaction which is subject to customary law, you often have a situation of conflict between the two different customary law systems, and the issue of which one is applicable has to be determined by members of the communities involved or by a Court as the case may be. Thus, in the case of **OLOWU v. OLOWU**, the Supreme Court held that: **although Nigeria is one nation/country, its multi-ethnic, multi-lingual and multi-customary laws makes the problem of Conflict of Laws unavoidable.**
2. Nigeria operates an integrated legal system, which is made up of a plurality of laws or different systems of laws such as the English law, Customary law, Muslim law, Statute law and so on. This may lead to a situation of Conflict of Laws as the case may be.
3. Where parties to a transaction rely on different systems of law. An instance is where one party relies on English law and the other party relies on Customary law. The Case of **KONEY v. UNION TRADING Co** is authoritative here, where the plaintiff relied on customary law while the defendant relied on English law.
4. Where parties who have been involved in a transaction governed by one system of law, go into another transaction governed by a different system of law, issues of Conflict of law may arise. A ready example is where Couples celebrate marriage according to native law and custom, and later according to church rights and then revert back to live a traditional life. Upon intestacy, Conflict of law is often an issue. The case of **COLE v. COLE** is classic/pictorial example of such situation.

5. A relevant law maker may act *ultra-vires* and enact a law which is beyond his powers thereby bringing such *Ultra-Vires* law into Conflict with a superior law. In the Case of **COUNCIL OF UNIVERSITY OF IBADAN v. ADAMOLEKUN**, **SECTION 35 of the COURT OF APPEAL EDICT, W.N. of 1964** was held void by reason of inconsistency. Also, in **DOHERTY v. BALEWA**, the court held that the power conferred on the PRIME MINISTER by Parliament through the **COMMISSION AND TRIBUNALS OF INQUIRY ACT (CTIA) of 1961** is inconsistent with the Constitution.
6. The Federal, State and Local Governments may all have Concurrent legislative power over certain matters at the same time, and each may enact a law thereon, thereby creating the problem of Conflict of laws and regulations which has to be resolved by a Court as the circumstances may demand.

Conflict Situations

Conflict of laws situations which usually come up for determination in Nigeria may be:

- 1) Conflict Between English Law and Customary Law;
- 2) Between Different Systems of Customary Law ;
- 3) Between English Law and Islamic Law;
- 4) Between Different Schools of Islamic Law ;
- 5) Between Customary Law and Islamic Law :
- 6) Between the Constitution and other Laws;
- 7) Between Federal, State, and Local Government Laws.

Between English Law and Customary Law

Conflict of law under this heading may arise in cases between a Nigerian and a foreigner; or in cases between two Nigerians.

BETWEEN A NIGERIAN AND A FOREIGNER:

The starting point under this heading is to determine who is a Nigerian and who is a foreigner for purposes of Internal Conflicts of Laws. Different Statutes adopted different terminologies (terms) to describe who is a Nigerian and a foreigner. For instance:

SECTION 20 of the High Court Law of former Eastern Nigeria talks of “**persons of Nigerian descent and persons who are not of Nigerian descent**”.

SECTION 27(2) of the Lagos State High Court Law and SECTION 34(2) of the High Court Law of former Northern Nigeria talk of “natives and non-natives”.

SECTION 12(2) of the High Court Law of former Western Nigeria used the term “Nigerians” and “Non-Nigerians”.

However, the Constitutional provision for Citizenship under **CHAPTER III, CFRN 1999** appears to have settled the question of who is a Nigeria. **Section 25(1) of the CFRN 1999** provides as follows:

25(1) – The following persons are citizens of Nigeria by birth:

(a) Every person born in Nigeria before the date of independence either of whose parents or any of whose grandparents belongs or belonged to a community indigenous to Nigeria;

provided that a person shall not become a citizen of Nigeria by virtue of this Section if neither of his parents nor any of his grandparents was born in Nigeria

(b) person born in Nigeria after the date of independence either of whose parents or any of whose grandparents is a citizen of Nigeria; and

(c) Every person born outside Nigeria either of whose parents is a citizen of Nigeria.

Thus, a person who is a Nigerian within the meaning of **CHAPTER III of the CFRN 1999** cannot be declared a non-Nigerian by any ordinary law. Similarly, an ordinary law that extends the scope of persons to be regarded as Nigerians beyond those contemplated by the Constitution will be ultra vires the Constitution.

Now that the question of who is a Nigerian and who is not a Nigerian is settled, it is now essential to note that, prima facie (generally), cases between a Nigerian and non-Nigerian are to be decided according to English law. In other words, the general rule is that where a transaction involves a Nigerian and a foreigner, the applicable law is English law. Thus, in **KONEY v. UNION TRADING CO LTD**, a Nigeria ordered a portable sewing machine from the defendant European company. When problems arose in the transaction, it was held that English law was to govern the transaction since the plaintiff was a native (Nigerian) and the defendant a non-native (foreigner).

The above general rule, and the following exceptions are the captured in the various High Court Laws of the various regions (now states) of Nigeria. Among the exceptions to this general rule include:

- 1) Where the application of English law in cases between natives and non-natives will lead to substantial injustice, then Customary law will apply.

This was the position of the court in the case of **NELSON v. NELSON** where the court held that if the application of English law will cause substantial injustice, then customary law will apply.

NB: substantial injustice rule applies only in cases between a Nigerian and non-Nigerians. This, where the strict application of English law will lead to substantial injustice being done to either the Nigerian or the non-Nigerian or both parties, then customary law will apply.

In situations where both English law and Customary law will lead to substantial injustice, **PARK** suggests that in such a situation, the general rule i.e. English law should apply. **According to NIKI TOBI, in such situations, the Courts should consider which of the rules would cause graver injustice in their application to the parties, and apply the law that would cause lesser injustice.**

- 2) Where the parties agree that English law should not apply or where they agree a law other than English law should regulate their transaction, that which they have agreed will become the applicable law.

BETWEEN NIGERIANS (NATIVES):

Generally, cases Between Nigerians are to be governed by customary law, where the transaction is subject to customary law. It is on this basis that the courts applied the rules of customary law in lieu (instead) of English law in the case of **LABINJOH v. ABAKE**.

However, there are 2 major exceptions to the rule that Customary Law shall govern cases between Nigerians. These exceptions are:

1. Where What is what ordinarily subject to customary law agree, either expressly or impliedly, that Customary Law should not apply; or that a law other than customary law should govern their transaction, that which they have agreed upon will become the applicable law.

In **OKOLIE v. IBO**, the Court held that not minding that the parties belong to the same ethnic groups, that having regard to their respective occupations, the nature of the transaction and the product involved, it could be inferred that the parties intended their rights and obligations to be governed by English and as such, Customary law was not applicable.

2. In cases between Nigerians, if the transaction is unknown to customary law, then English will govern the transaction.

In the case of **GRIFFIN v TALABI**, **VERITY CJ** in resolving the issue of the applicable law held that English law applied on the basis that the terms of the transaction clearly revealed that the nature of the transaction is unknown to Customary law.

In **SALAU v. ADERIBIGBE**, a hire-purchase agreement ran into a hitch (problem) and there was contention as to which law was applicable. The Court held that English law was applicable.

The case of **GREEN v. OWO** is also of essence here.

● CONFLICT BETWEEN DIFFERENT SYSTEMS OF CUSTOMARY LAW

As beautifully articulated by **NIKI TOBI, JSC** in the case of **OLOWU v. OLOWU**:

“Nigeria being one nation, one country, will it not be contradiction in terms to talk of Conflict of laws in the same country? Our former National Anthem supplied the answer ‘Though tribes & tongues may differ in brotherhood we stand, Nigerians all’. There are different tribes and tongues in Nigeria. Different customary laws dealing with devolution of property on intestacy. where there is a clash between two or three of these different customary laws and the court has to choose which one should apply, we have an issue of conflict of laws.”

The issue of Conflict between different systems of Customary law may be considered under the following headings:

- a) Succession matters
- b) Land matters
- c) Other Civil matters

Succession Matters

Generally speaking, the law is that in succession cases, the appropriate law is the **personal law** of the deceased. **“Personal law”** in this context refers to the law which the deceased was normally subject to when he was alive, and as held in **OLOWU v. OLOWU**, a person is free to change his personal law from Customary law to English law or vice versa and also from one cultural group to another and so forth. Note also that change of personal law may be either by choice or by the process of assimilation or acculturation and upon such change, that which he has changed to becomes his personal law. In **TAPA v. KUKA**, a Nupe Moslem of Bida origin died intestate leaving a house in Lagos. It was held that the personal law of the deceased was the Moslem law prevailing among the Nupe tribe and that it should apply in the distribution of his estate. Similarly, in **GHAMSON v. WOBILL**.

However, and as held in **EKEM v. NERBA**, where the personal law of the deceased cannot be easily ascertained, the law of the place where the land is situated (i.e., the *Lex Situs*) will apply.

Land Matters

The general and first rule regarding land is that, the law of the place where land is situated, that is, the *Lex Situs* applies. In **MOJEKWU v. IWUCHUKWU**, the Supreme Court held that it was the *Lex Situs* that governs succession to landed property.

In some States of the Federation, this rule applies to land cases subject to the qualification that the application of the Lex Situs principle cannot operate to deprive a person of any beneficial interest he is entitled to in the land under any law of inheritance (except the right to occupy the land).

Other Civil Matters

When it is established that the case/matter falls outside the ambit/scope of succession or land matters: the Court is to apply the law prevailing in the area of the jurisdiction of the Court. However,

- 1) When the personal laws of the parties are the same, the courts have been advised or are expected to consider the law that is binding between the parties. In this connection, **PARK** has suggested that when the personal laws of the parties are the same but differ from the laws of the area of the court's jurisdiction, (except in land matters) the personal law of the parties should prevail over the law of the area of the court's jurisdiction
- 2) Where the law prevailing in the area of jurisdiction of the Court is the personal law of one of the parties, the Court will consider the local law or custom that is generally applicable where there is no indication as to which system they assumed to govern their transactions.
- 3) Where the personal laws of the parties differ and are at the same time different from the law of the area of the court, much will depend on the facts and attitudes of the parties. But where the facts offer transaction, the courts will probably prefer to apply the law prevailing in the area of the court's jurisdiction.

NB: The laws applicable to the States of the former Western Nigeria are very comprehensive. It provides that in civil causes or matters, other than land or succession cases, the applicable law is the law of the area of jurisdiction of the court.

There are, however, certain situations under which the Courts are enjoined to apply the law binding between the parties, they are:

- 1) Where both parties not natives of the area of jurisdiction of the court.
- 2) Where one of the parties is a non-native of the area of jurisdiction of the court, and the parties agreed or may be presumed to have agreed that the customary law applying to that party (the non-native) should regulate their obligations, wholly or party.

In **OSUAGWU v. SOLDIER**, the court held, *inter alia*, that where the law of the court is the law prevailing in the area but differs from the law binding on the parties, the court should be reluctant to apply the law prevailing in the area and that it will be in the interest of justice and to consider and eventually, administer the law binding between the parties.

Adv Chimdiike et Faithful